In addition, imposing Pung's fair-market-value rule under the Eighth Amendment would invite the same difficulties that would attend his Fifth Amendment theory—namely, the demise of this country's longstanding use of tax sales to collect debts. The Eighth Amendment requires no such thing.[5]

* * *

The Pung family lost its property because it failed to pay its taxes. The Fifth Amendment protects the family's right to surplus proceeds from the tax sale, not compensation for the property's fair market value. The Eighth Amendment offers no greater protections. The judgment of the Sixth Circuit is vacated, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE GORSUCH and JUSTICE JACKSON join, concurring.

Page Proof Pending Publication

The Court today rightly rejects petitioner Michael Pung's argument that anytime a government forecloses and sells an individual's home to cover an outstanding tax debt, the Fifth Amendment Takings Clause requires the government to pay the home's "hypothetical fair market value." *Ante*, at 33. As the Court explains, surplus proceeds can be just compensation, assuming that the auction sale is "fairly conducted in light of our country's history of tax sales." *Ibid.* Based on this language, I do not read the Court's opinion as identifying the contours of a fair auction, or endorsing the parties' or the United States' articulations of what this standard requires. The Court correctly leaves those issues for remand,

[5] The County argues that the Fifth and Eighth Amendments cannot both apply to the same government action, and the United States argues that the Excessive Fines Clause applies only to fines connected with crimes. Because we reject Pung's Eighth Amendment claim on other grounds, we need not address these broader theories.

should the Sixth Circuit find them preserved. See *ante*, at 43. With that understanding, I join the Court's opinion.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins as to all but footnote 1, concurring in part and concurring in the judgment.

The Pung family lived in a modest home in central Michigan. They paid their property taxes on time and in full. When the local tax official wrongly assessed additional property taxes against them, they went to court and won. The tax official then assessed those same additional property taxes against them again, did not disclose that fact in the Pungs' tax bill, and initiated foreclosure proceedings. Although the additional tax bill would amount to only $2,242, the local government took the Pungs' entire home to pay it. It then sold the home and returned to the Pungs less than half of its value. The lower courts upheld the local government's actions. Today, this Court vacates and remands. I write separately about my preliminary view of the proper resolution of the Pungs' claims.[1]

Page Proof Pending Publication

I

A

In 1991, Scott Pung bought a three-bedroom ranch-style home for himself, his wife, and their two children. The home sat on a little over half an acre of land in a suburban neighborhood in Union Township. Union Township is a small town in Michigan's Isabella County (County). Pung purchased the property for $125,000.

---

[1] I join the Court's opinion as to all but Part II–B because I agree that the auction surplus from a tax foreclosure sale can constitute just compensation if it is consistent with historical practice, and because I agree that the parties should have the opportunity to litigate below whether the local government's conduct here was consistent with that practice.